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May 28, 2026

**To: El Dorado City Commission
City of El Dorado
220 East 1st Avenue
El Dorado, Kansas 67042**

From: Ashlyn Brianne Lindskog, City Attorney

RE: Ordinance No. G-___ – Zoning Text Amendment for Emerging Industrial Uses (Including Data Centers)

Purpose of This Memorandum

This memorandum is provided by legal counsel to the City of El Dorado. Its purpose is not to advocate for or against data centers. The City's legal counsel does not have a position on whether a data center should ever be built in or near El Dorado, as that is a policy question for the community and Commission. The purpose of this memorandum is to ensure that the Commission, and the public following this process, understands what the text amendment vote actually means legally and practically, and what it does not mean.

To be clear, a vote in favor of this amendment is not a vote for data centers. It is a vote for the City having the tools to regulate them, condition them, or deny them through a transparent, legally sound public process. To be precise about my role: I take no position on whether a data center should ever be built in or near El Dorado. I do take a position on this amendment, which is that the City should adopt it so it has the legal tools to regulate, condition, or deny such a use if a project is ever proposed. Those are two separate questions, and a recommendation on the second is not advocacy on the first. **A vote against this amendment does not prevent data centers.** It prevents the City from being able to meaningfully control what happens if one is proposed. The Commission is only being asked to decide whether the City's zoning code should have a clear, enforceable framework for evaluating one, or any other emerging industrial use, if a proposal is ever submitted. This is a **policy-based** question, not a project-based question.



What Is Being Proposed

The proposed Ordinance No. G-___ amends three sections of the City's Zoning Regulations:

- Article 3 (Rules and Definitions) – adds formal definitions for 15 emerging industrial and infrastructure uses, including Data Center, Battery Energy Storage System, Hydrogen Production Facility, Advanced Manufacturing Facility, Small Modular Reactor, and others currently absent from the code.
- Appendix A (Listing of Uses by Zoning District) – assigns each new use to the appropriate zoning districts (O-I, I-1, I-2) and designates whether the use is permitted by right (P), requires a Special Use Permit (S), or is not permitted (X).
- Article 6 (Supplementary District Regulations) – adds Sections 25 through 39, establishing baseline standards and application requirements applicable to all 15 uses, with use-specific supplementary regulations for each.

Data centers are addressed specifically in Article 6, Section 27. Under that section, a Special Use Permit is required in every zoning district where the use is listed. This means that in the proposed text amendment, **no data center can be approved without a public hearing before the Planning Commission and the Governing Body.** Right now, without any amendment, that is not the case.

What the Ordinance Does	What the Ordinance Does NOT Do
Defines “Data Center” and 14 other emerging industrial uses in the zoning code	Approve any specific data center project
Requires a Special Use Permit for any data center in any zoning district (Art. 6.27.A)	Commit the City to issuing any permit
Establishes mandatory public hearing before any data center can be approved	Extend utilities or provide infrastructure



What the Ordinance Does	What the Ordinance Does NOT Do
Sets baseline standards for noise, screening, setbacks, and generator testing hours	Offer or authorize any tax incentives
Requires detailed utility, water, cooling, and energy narratives from any applicant	Obligate the City to support development
Gives the City authority to impose conditions or deny based on documented findings	Replace other local, state, or federal review requirements
Requires 500-ft setback for equipment from residential boundaries (absent equivalent mitigation)	Prevent the City from later pursuing a prohibition with proper findings

The Core Problem: Regulatory Silence Is Not Protection

El Dorado's current zoning code **does not currently define or classify data centers**. That silence is not a neutral condition. It is a regulatory gap that benefits an applicant, not the City.

Under K.S.A. 12-756(b), special uses "may be designated within each district with conditions attached" but only within a framework that has designated them. The Special Use Permit requirement proposed in Article 6.27.A can only attach to a use that is defined and classified in the code. A permit cannot be required for a use that does not exist in the City's regulations. Right now, data centers and other uses like described in the amendment do not exist in El Dorado's zoning code. The SUP requirement the Commission may want to impose in the future has no hook to hang on.

The consequence is practical and immediate. If a developer submits plans today, the City's ability to even require a public hearing, impose conditions, or deny the application on documented grounds depends entirely on whether the code provides a standard against which the proposal can be measured. Without that standard, a denial is vulnerable to exactly the challenge the Kansas



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Supreme Court identified in *Zimmerman v. Board of County Commissioners of Wabaunsee County*, 289 Kan. 926 (2009): that the action was "so arbitrary that it can be said it was taken without regard to the benefit or harm involved to the community at large... and so wide of the mark that its unreasonableness lies outside the realm of fair debate."

Zimmerman is instructive not just for what it held, but for what it required. The Wabaunsee County Board of Commissioners ultimately prevailed in the Kansas Supreme Court when it prohibited commercial wind farms county-wide. It prevailed because it had done the predicate work: it defined the use, adopted a Comprehensive Plan that addressed the issue, held public meetings, and produced specific written findings of fact tying its decision to aesthetics, community welfare, and plan conformance. The court upheld the prohibition because the record supported it. The City of El Dorado currently has none of that infrastructure for the uses defined in the proposed text amendment. No definitions. No classifications. No plan reference. No findings. A denial issued against that backdrop is not an easily defensible regulatory decision. It could be argued that it is an arbitrary one under Kansas zoning law.

Why Voting Against This Amendment Does Not Prevent Data Centers Outright

Some may view a vote against this amendment as a vote against data centers. That interpretation is legally incorrect, and I want to be direct about the practical and legal consequences.

If the proposed text amendment fails, the current code remains unchanged. Data centers are not prohibited; they are simply undefined. This means that the City retains less regulatory leverage, not more. Without a defined classification, the Special Use Permit requirement of Article 6.27.A would not apply. Without codified standards for noise, setbacks, utility documentation, generator testing, and decommissioning, the City has no framework within which to impose conditions or document the basis for a denial. And without that framework, any denial the City



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attempts to issue is exposed to the same legal vulnerability *Zimmerman* illustrates: a governing body that acts without a record, without findings, and without defined standards can have a difficult time surviving a reasonableness challenge in district court. I want to be very clear here: **Maintaining the status quo is not a neutral outcome. It is a choice to face future applications without tools.**

What the Special Use Permit Framework Gives the City

Requiring a Special Use Permit for data centers (Art. 6.27.A) is one of the most significant protections available to the City under Kansas zoning law. The SUP process is not a formality. Through that process, the Commission can:

- Require a public hearing and procedural process.
- Require the applicant to submit detailed narratives on water and cooling demand, peak electric load in megawatts, planned utility interconnections, backup generation inventory, and Evergy's Path to Power status (Art. 6.27.D, E, G).
- Require an acoustic study from a qualified professional addressing normal operations, generator testing, tonal and low-frequency noise, and recommended mitigation (Art. 6.27.I).
- Enforce a 500-foot setback for outdoor generator yards, cooling yards, substations, and bulk fuel storage from any residential district boundary or sensitive use (Art. 6.27.K).
- Limit non-emergency generator testing to 7:00 a.m.–7:00 p.m., Monday through Saturday, with no routine testing on Sundays or City holidays (Art. 6.27.J).
- Require a decommissioning and site restoration plan, including financial surety (Art. 6.25.K).
- Impose additional conditions or deny the application outright if the applicant cannot demonstrate compatibility with the standards established in the code.

That last authority, the **ability to deny**, is grounded in the fact that the applicant must meet defined standards. The value of that framework becomes clearer when considered alongside the factors Kansas courts have identified as relevant to zoning decisions. In *Golden v. City of Overland Park*,



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224 Kan. 591 (1978), the Kansas Supreme Court identified eight factors relevant to the reasonableness of a zoning decision, including the character of the neighborhood, the suitability of the property for the proposed use, the extent to which the use will detrimentally affect nearby property, and the conformance of the requested use with the City's comprehensive plan. The Kansas Supreme Court reaffirmed in *Zimmerman v. Board of County Commissioners of Wabaunsee County*, 289 Kan. 926 (2009), that while these factors are not mandatory in every case, they reflect the kind of documented, reasoned analysis that supports a governing body's decision when it is later reviewed for reasonableness.

The proposed ordinance is designed to ensure that information relevant to those factors is actually in front of the Commission when it matters. The required utility narrative addresses infrastructure capacity and service feasibility. The acoustic study addresses impact on neighboring properties. The residential setback requirements address neighborhood compatibility. The Everygy Path to Power disclosure addresses the relationship between the proposed use and existing community infrastructure. The decommissioning plan addresses long-term community impacts. None of that information can be required, evaluated, or made part of a public record without the framework the amendment establishes. And without that information in the record, a governing body that later attempts to deny an application, or a court that attempts to evaluate whether that denial was reasonable, is left, as the Kansas Supreme Court put it in *Zimmerman* citing *McPherson Landfill, Inc. v. Board of Shawnee County Commissioners*, 274 Kan. 303 (2002), in precisely the "quandary" the law is designed to prevent.

The Risk of Doing Nothing Is Not Lower Than the Risk of Acting

City staff and legal counsel recognize that this item has generated significant public concern. That concern is understandable, and the questions residents are asking about water, infrastructure, community health, and the City's relationship with outside developers are legitimate questions that deserve honest answers through a legitimate process.



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What I would caution against is the premise that voting no on this amendment is the protective choice, because it isn't. **The risk of doing nothing is not lower than the risk of acting. It is higher.** Without defined standards, without a Special Use Permit requirement, and without the regulatory framework this amendment establishes, the City has fewer tools to require public hearings, fewer grounds to impose conditions, and a weaker legal position if it attempts to deny a future application. The public has expressed that it wants this process to be transparent and above board. This amendment is what makes that possible. Declining to adopt it does not keep data centers out; it keeps the public out of the process if one is ever proposed.

The City's current code could be read to allow a data center by right, requiring nothing more than a building permit. The proposed amendment ensures that any such use goes through a public process. A hypothetical may help make this point clearer:

If a developer acquires land already zoned for industrial use in El Dorado and proposes to construct a data center. Right now, a developer could arguably build a data center with only a building permit and no public hearing at all. They may not be required to disclose peak electric demand, cooling water consumption, backup generator configurations, or noise impacts. They may not be subject to setback requirements designed to protect nearby residents. They may not be required to submit a decommissioning plan or post financial surety. The public may have no formal role in the process at all.

That is not speculation. It is the direct consequence of the current code's silence on this use. Without a definition, there is no classification. Without a classification, the Special Use Permit requirement of the proposed Article 6.27.A has nothing to attach to. Without that requirement, none of the supplementary standards in the proposed Articles 6.25 and 6.27 are triggered. The entire protective framework the proposed ordinance establishes — the acoustic studies, the utility narratives, the residential



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setbacks, the generator testing limits, the security review, the decommissioning obligations — none of it applies. The City's only tool at that point is the building permit process, which is not designed to evaluate land use compatibility, infrastructure impact, or community welfare.

Many individuals have expressed clearly that they want this process to be transparent, above board, and subject to meaningful oversight. Those positions are exactly the right things to want, but they require a legal framework to be achievable. The instinct behind the request that the Commission vote against the text amendments is understandable, but as a legal matter it leaves the City with fewer tools, not more.

If the Commission's Intent Is Prohibition: That Requires Different Action

I recognize that some residents have expressed a preference for outright prohibition. Those voices are part of the public record and deserve a process that takes them seriously. Again, my goal is not to evaluate whether the opposition is legitimate, but to explain what process serves it best. As Kansas law makes clear, community sentiment is a legitimate planning factor, but only when it is documented, deliberate, and grounded in findings that can withstand legal scrutiny. A vote against the text amendment does not channel that sentiment into a durable outcome, but it does remove the tools the City would need to act on it.

If the Commission's intent is to pursue an outright prohibition on data centers, my recommendation, from a legal position is that the current record does not support that action and attempting it would expose the City to additional legal risk. Kansas law does establish that a prohibition on specific industrial use is legally achievable, but it requires considerable factual record building. El Dorado's current record on this question is limited.

A petition has been circulated in the community and has gathered a notable number of signatures. That level of civic engagement is meaningful and should absolutely be acknowledged.



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But a petition is not, by itself, a planning record. It documents that some residents have concerns. It does not document what those concerns are, how they weigh against competing community interests, or how they relate to the specific planning factors Kansas courts require a governing body to address. It is, at best, the beginning of the conversation the Kansas Supreme Court has indicated these decisions require, not the conclusion of it.

A prohibition that could withstand legal challenge requires substantially more. It requires a documented planning process, updated comprehensive plan findings that reflect a deliberate community vision, specific findings of fact tied to land use compatibility and community welfare, and an honest accounting of the consequences of foreclosing an entire category of industrial use.

A prohibition also has policy consequences, foreclosing an entire category of industrial use, that the Commission and community should weigh. Those are policy judgments for the Commission, not legal conclusions for counsel. My only legal point is that whatever the Commission decides, an outright prohibition adopted without findings and without a comprehensive plan amendment is exposed to challenge, while a prohibition built on a documented record is defensible.

To be clear, I am not advising the Commission that prohibition is the wrong policy outcome. That is a decision for the Commission and the community. I am advising the Commission that if prohibition is the goal, it deserves the same serious, deliberate, documented effort that Kansas law requires. The residents who want protection deserve a process that could actually produce a durable legal result. The residents who depend on this City's fiscal health deserve an honest conversation about what an outright prohibition means for economic development. And the Commission deserves a record that supports whatever decision is ultimately made. A vote against the text amendment removes the tools the City needs while that conversation remains unfinished.

Conclusion



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The proposed zoning text amendment is not a vote on data centers. It is a vote on whether this City governs proactively or reactively, whether it has the tools to protect its residents, its infrastructure, and its community character through a transparent and legally sound process, or whether it faces the next development inquiry without the ability to require a public hearing, impose meaningful conditions, or defend a denial in court.

My recommendation is that the Commission adopt the proposed amendment. Not because data centers are desirable and not because any specific project should be approved. I make this recommendation because a city that prepares its regulatory framework before it needs it is a city that retains control. A city that does not is a city that finds out what it cannot do only after it is too late to do anything about it.

I know that City staff and I are certainly prepared to assist in building the factual record towards whatever direction the Commission gives may require. But a vote against this amendment does not initiate additional work. It simply leaves the City where it is, without definitions, without standards, without a public process, and without the legal foundation to act meaningfully in any direction. The community deserves better than that and so does this Commission.

Best,

Ashlyn B. Lindskog
Founder & Attorney

EL DORADO

K A N S A S

Official Statement Regarding Proposed Zoning Text Amendment

May 22, 2026

The City appreciates citizens sharing their concerns regarding potential data center development in or near El Dorado. We recognize that this issue has generated significant public interest, and we appreciate residents taking the time to express their views. Questions about water use, electric demand, environmental impacts, land use compatibility, tax incentives, and long-term community effects are important and deserve to be taken seriously.

Currently, the City's zoning regulations do not specifically define or regulate data centers. As such, this type of land use could be interpreted as allowed "by right" in certain industrial districts without further review. Because data centers are an emerging and rapidly evolving land use, the City is considering a zoning text amendment to establish a clear regulatory framework before any future project is considered. The purpose of the amendment is not to approve a specific project. Rather, it is to make sure the City has rules in place if a project is ever proposed.

Without clear zoning standards, the City has fewer tools to evaluate, regulate, condition, or even deny a proposed use based on its specific impacts. A zoning text amendment allows the City to define data centers and other emerging technologies, identify where they may or may not be appropriate, and establish requirements that any potential project would have to meet before, during, and after development.

From a zoning perspective, a blanket prohibition is difficult to defend unless it is supported by clear planning and factual findings. A more defensible approach is to define the use, require a public hearing, establish standards, require detailed project information, and preserve the ability to deny or condition a specific request if the facts presented do not support general approval.

The proposed framework would also allow the City to require a Special Use Permit for data center projects. A Special Use Permit is an important land use tool because it allows the City to review a specific proposal on a case-by-case basis rather than treating all projects the same. Through that process, the City may evaluate issues such as infrastructure capacity, water demand, electric service, traffic, noise, setbacks, screening, environmental considerations, emergency access, compatibility with surrounding properties, and other site-specific concerns.

The Special Use Permit process also gives the City the ability to impose additional conditions or standards when necessary to protect the public interest. Those conditions may vary depending on the size, location, design, utility needs, and potential impacts of a proposed project. This creates

a review process with guardrails, public oversight, and the ability to require additional protections.

It is also important to clarify that a zoning text amendment does not obligate the City to approve a future data center, provide incentives, extend utilities, or support any development. Those decisions, if they arise, would require separate review and consideration by the appropriate public bodies. The zoning amendment is a planning and regulatory step, not a final project approval.

For communities, land use regulations often work best when they are developed before a major proposal is on the table. Waiting until a project is already pending can place the City in a reactive position. By considering standards now, the City can better protect residents, property owners, infrastructure systems, and community resources. This is especially important with emerging technologies and industries that may not fit neatly into older zoning categories.

The City understands that some residents oppose data centers altogether. Others may want more information before forming an opinion. The role of the City's zoning process is to ensure that, regardless of viewpoint, the community has a clear, transparent, and legally sound process for evaluating a type of land use. Good planning does not eliminate disagreement, but it does help ensure that decisions are made with better information, clearer expectations, and appropriate public safeguards.

The City remains committed to listening to residents, following required public processes, and considering the long-term interests of the community. Public input is an important part of that process, and comments received from residents will help inform the discussion as the City evaluates whether and how to amend its zoning regulations.

Finally, there is some speculation that the City has been working on a project in the background as it considers amendments to its zoning regulations. It is true that the City has met with a developer inquiring about the possibility of developing a data center in or near El Dorado. Such meetings are not uncommon as companies frequently conduct due diligence to determine sites prior to making investment decisions. City staff often meet with interested parties to discuss development processes, infrastructure capabilities, available sites, and workforce. Conversations with prospective companies also allow the City to learn about a company's needs to determine if it is feasible for us to serve a project.

These meetings are informal and carry no obligations on behalf of the City. The discussion focuses on sharing information to allow a company to make an informed decision about investing in our community. Any zoning, special use permits, incentives, or infrastructure extensions must be approved by the City Commission in an open, public meeting. Over the years, companies in various industries and sectors have met with City staff to research our community for their expansion plans.